

JUDGMENT SHEET
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.28694 of 2015

Muhammad Ilyas

Versus

Returning Officer & others

J U D G M E N T

Date of Hearing.	02.10.2015, 05.10.2015, 6.10.2015 & 07.10.2015
PETITIONERS BY:	Ch. Zulfiqar Ali, Mr. Ishtiaq Chaudhry, Mr. Fiaz Ahmad Mehr, Mr. Nadeem Abbas Sandhu, Mr. Fida Hussain Matta, Ch. Muhammad Idrees, Mr. Amjad Hussain, Mian Khadim Hussain, Mr. M.R. Awan Malik, Mr. Muhammad Saeed Ansari, Mr. Naseer Ahmad Jaura, Mr. Muhammad Ramzan Rana, Mr. Muhammad Afzal Lone, Mr. Irfan Umar Khokhar, Ch. Abrar Hussain, Mian Shehbaz Ahmad, Rana Farhat Abbas, Rana Ghulam Sarwar, Malik Sajjad Hussain, Mr. Muhammad Shahid Iqbal Babra, Mr. M. Ahsan Farooq, Mr. M. Nauman Khan, Mr. Zohaib Imran Sheikh, Malik Noor Muhammad Awan, Ch. M. Ashraf Jalal, Sardar Muhammad Ramzan, Mr. Ijaz Ahmad Ch., Mr. Iftikhar Ahmad Mian, Mr. Asghar Ali Gill, Mr. Naveed Ahmad Khawaja, Syed Ali Imran, Mr. Muhammad Ghazanfar Ali Bhatti, Sh. Sakhawat Ali, Mr. Amir Yaqoob Bhatti, Malik Amjad Pervaiz, Mr. Allah Bukhsh Leghari, Ch. Abdul Waheed, Mr. Muhammad Shafiq Malik, Rai Nasir Ali Kharal, Ch. Shah Nawaz Dhillun, Malik M. Awais, Pir Khaliq Nawaz Shah, Mian Maqsood Ahmad, Mr. Muhammad Faisal Awan, Ch. Babar Waheed, Ch. Abdul Razzaq Chadhar, Mr. Numan Khan Lodhi, Rana Sana Ullah Khan, Mr. Mubeen Uddin Qazi, Ch. M. Anwar Khan, Mr. M. Asif Ismail, Mr. Fakhar uz Zaman Akhtar and Mr. Anjum Munir Kashif, Advocates.
RESPONDENTS BY:	Mian Irfan Akram Deputy Attorney General along with Hafiz Adeel, Law Officer.

Shahid Karim J: - This single order shall decide the instant petition (W.P No.28694 of 2015) as well as the connected petitions whose Numbers and titles have been given in Annexure ‘A’

to this petition. It is not relevant to refer to the individual facts of each Constitutional petition. Suffice to say that these petitions lay a challenge to different orders passed by the Appellate Authority while deciding appeals under rule 14(10) of Punjab Local Government (Conduct of Elections) Rules, 2013 (**Rules, 2013**) and appointed for the said purpose by the Election Commission of Pakistan.

2. Two common strands run through these petitions. One, the petitioners are candidates and they filed their nomination papers for election as a member of **Ward**. Second, the nomination papers of the petitioners have been rejected by either the Returning Officer or the Appellate Authority on the ground that the proposers and seconders or either of them are not voters of the **Constituency** from which the candidate has filed his nomination papers to be elected as a member.

ISSUE

The issue at the heart of these petitions relates to the true construction of the Rule 12(2) and 14(7) of the Rules, 2013.

Petitioners' submissions:

3. The submissions made on behalf of the petitioners may be summarized as follows:

- I. That the qualifications and disqualifications have been delineated in section 27 of Punjab Local Government Act, 2013 (Act, 2013) and Returning Officers or the Appellate Authorities, as the case may be, cannot travel beyond the qualifications and disqualifications enumerated in section 27 of the Act, 2013.*
- II. That the rejection of the nomination papers on the ground that the proposer and seconder are not voters from the Constituency of the petitioners/ candidates, is tantamount to adding to the qualifications and disqualifications given in section 27 of the Act, 2013 and the impugned orders are, therefore, ultra vires.*
- III. That, notwithstanding the above and in the alternative, rule 14(7) of the Rules, 2013 gives wide powers to the Returning Officer to consider the bona fide mistake and to provide an opportunity to the petitioners to rectify by substituting a proposer and seconder from the same constituency.*
- IV. That some of the learned counsels argued that in a municipal committee, a ward is an independent constituency but so far as a Union Council is concerned, the whole of the Union Council is to be deemed as a constituency.*

DETERMINATION

4. The provision which is at the centre of the controversy involved in these petitions and which

has triggered the present controversy is rule 12(2) of the Rules, 2013, which reads as follows:

“12. Nomination of elections. --- (1) ”

(2) Any voter of a constituency may propose or second the name of any duly qualified person to be a candidate for an election of a member or, as the case may be, the Chairman and the Vice Chairman of that constituency.

(3)

(i) the Chairman and the Vice Chairman of a Union Council as joint candidates in Form-II(A);

(ii) general seats of a Ward of a Union Council or a Municipal committee in Form-II(B).”

5. According to the impugned orders, it is an obligation cast by law in terms of sub-rule 2 of rule 12 of Rules, 2013, reproduced above, that the proposer and seconder should be included in Electoral Rolls as voters from the same constituency from which the candidate has filed his nomination papers to be elected as a member. The resolution of the controversy, therefore, depends upon a proper objective analysis and construction of the term ‘Constituency’. The Rules, 2013 define the term as follows:

“2 (f) “constituency” means a constituency delimited under the Act:”

6. Thus, by virtue of the definition, a constituency would mean a constituency delimited under the Act. The Act has been defined to mean the Act, 2013. The relevant provision with regard to the delimitation and as found in the Act, 2013 is

section 8(3), which, for our purposes, reads as follows:

“8. Local Governments and delimitation. –(1).....
(2)

(3) *The Election Commission shall delimit and notify the Union Councils and wards on the basis of the principles laid down in sections 9 and 10 and, as nearly as possible, under the Delimitation of Constituencies Act, 1974 (XXXIV of 1974) or any other Act of the Majlis-e-Shoora (Parliament).”*

7. It is clear from a reading of section 8(3) of the Act, 2013 that the power to effect delimitation and notify the Union Councils and wards has come to vest in the Election Commission of Pakistan by an amendment brought about vide the Punjab Local Government Act (Amended Act), 2015 dated 12.1.2015. In that provision, which has been reproduced above viz. section 8(3) of the Act, 2013, it is clear that the Election Commission of Pakistan shall delimit and notify the Union Councils as well as wards. It indubitably follows that the Election Commission of Pakistan shall conduct the delimitation of wards as well as the Union Councils. This leaves it in no manner of doubt that the wards are also to be delimited for the purpose of elections to the local government. When this provision is read with the definition of constituency given in rule 2(f) of the Rules, 2013 and reproduced above, the combined effect is that a ward is, in fact, a

constituency which is delimited by the Election Commission of Pakistan.

8. A query was put to the learned counsel for the petitioners as to whether the ward from which the petitioners intended to contest the elections, was a constituency for the purposes of their election or not? The learned counsel for the petitioners, to their credit, were forthright in replying that the ward from which the petitioners have filed their nomination papers was their constituency for the purposes of elections. This should put to rest the controversy as to whether a ward is or is not a constituency for the purposes of rules 12(2) of the Rules, 2013. This concession, however, is not the only determining factor in the conclusion which inevitably follows from a reading of the various provisions of the Act, 2013 and Rules, 2013 that a ward is a constituency delimited by the Election Commission of Pakistan. A ward is the smallest unit in the entire delimitation process and is an important building block in the constituencies so delimited.

9. The learned counsel for the petitioners in some of the petitions argued that the qualifications and disqualifications have been enumerated in section 27 of the Act, 2013 and the rejection of the

nomination papers on the basis of rule 12(2) of Rules, 2013, would offend against the mandate of section 27 of the Act, 2013 and is, therefore, irrational and without lawful authority. This submission of the learned counsel for the petitioners should receive a short shrift. Firstly, the said contention loses sight of the distinction which has to be drawn between the qualifications and disqualifications of a candidate as spelt out in section 27 of the Act, 2013 and the filing and the scrutiny of the nomination papers which is a distinct and a separate act. One cannot be confused with the other. The two processes are distinct and must be dealt with separately. Secondly, there is no challenge on the ground that the Rules, 2013 have not been validly enacted or that they travel beyond the statute. It is not the case of the petitioners that the said Rules are *ultra vires* the main enactment of Act, 2013. Therefore, the said contention can only be taken into account if a challenge is thrown to the vires of the Rules which unless set aside are valid and must be relied upon in law.

10. A few of the learned counsels raise the plea that a ward is an independent constituency if considered in the context of a municipal committee but is part of the whole of the Union Councils

considered in the context of a Union Council and in that context the entire Union Council must be considered as a constituency. This is a nuanced view put forth by the learned counsels for the petitioners and no basis for this view has been cited nor have the learned counsels referred to any law in support thereof. Neither the Act, 2013 nor the Rules, 2013 make a distinction which has sought to be established by the learned counsels on the touchstone of municipal committee being distinct from a Union Council. Suffice to say that both the municipal committee as well as the Union Council is local Government for the purposes of the Act, 2013 and if the intention of the legislature was such as is sought to be canvassed by the learned counsels, a distinction should have been clearly spelt out in the terms of the law. For the purposes of the controversy in hand, section 10 of the Act, 2013 also sheds light on the issue and may be referred to in this connection:

- “10. **Delimitation of wards in Municipal Committees.** –
- (1) The Election Commission shall delimit a Municipal Committee into wards for election of members of the Municipal Committee on general seats.
 - (2) For purposes of delimitation of a Municipal Committee:
 - (a) a ward shall consist of a census block or adjoining census blocks;
 - (b) the boundaries of a ward shall not cross the limits of the Municipal Committee; and
 - (c) the population of wards within a Municipal Committee shall, as far as possible, be uniform.”

11. A reading of section 10 of the Act, 2013 bolsters the submissions made by the learned Deputy Attorney General that there can be no cavil with the fact that the delimitation of the wards is conducted by the Election Commission of Pakistan and thus the said ward would be a constituency for the purposes of elections. A reference to rule 12(3)(ii) of the Rules, 2013 would also lend support to the submissions made by the learned Deputy Attorney General. It reads thus: -

“Rules 12(3)(ii)

(3)

.....
(i) *the Chairman and the Vice
Chairman of a Union Council as joint
candidates in Form-II(A);*

ii) *general seats of a Ward of a Union Council or
Municipal committee in Form-II(B). ”*

12. Once again a perusal of the provisions which has been reproduced above would show that every nomination papers shall be made by separate nomination papers by both the proposer and seconder in the case of general seats of a **Ward** of a Union Council or a municipal committee in Form-II(B). Once again the inescapable inference is that a ward constitutes and comprises a constituency *unto* itself and thus, must be treated as such.

Rule 14(7)

13. The learned counsel for the petitioners as an alternative argument and being confronted with the

inescapable conclusion that a ward is a constituency in itself invoked to their aid rule 14(7) of the Rules, 2013. This rule, for facility of purpose, is reproduced as under: -

“The Returning officer shall not reject a nomination paper on the ground of any defect which is not of a substantial nature and may allow such defect to be remedied forthwith, including an error with regard to the name, serial number in the electoral roll or other particulars of the candidate or his proposer or seconder so as to bring them in conformity with the corresponding entries in the electoral rolls.”

14. This provision may be termed as remedial in nature and intended to cure errors or defects which are not of a **substantial nature**. It gives the power in the hands of the Returning Officer to remedy the defect forthwith. At first blush, what strikes the reader upon a reading of this rule is the wide amplitude to which this can be put to use if placed in the hands of the Returning Officers unstructured and without laying down parameters. However, we are not here concerned with the exact scope of this rule. We are merely concerned with the application of this rule vis-à-vis the power of the Returning Officer to remedy the defect of the nature which is involved in these petitions i.e. if the proposer and the seconder are not registered voters of the same constituency then can the Returning Officer, by using his discretion, permit the substitution thereof, so as to remedy the defect? The question which is more

pertinent for our purposes is whether this is a defect of substantial nature or not.

15. As a prefatory, it must be stated that the words ‘any voter of a constituency’ in rule 12(2) of the Rules, 2013 must be read in conjunction with the words “for an election of a member or, as the case may be, the Chairman and the Vice Chairman of that constituency”. These words, when read together and in tandem, telescope the true intent of the rule. It lends meaning to it and leaves little to imagination. The ineluctable inference is that the voter who proposes or seconds the name of a duly qualified person to be a candidate for an election of a member must necessarily belong to that very constituency and none other.

16. Let us, for a moment, dwell on the *raison d’eter* and importance of the proposer and seconder and its true institutional basis. A combined reading of rules 12, 13 and 14 would bring forth that a person is ‘nominated for elections’. This nomination is made by the proposer and seconded by the seconder. A Returning Officer receives the nomination papers duly subscribed by the proposer and seconder. They shall be signed by both the proposer and seconder (and shall also be on solemn

affirmation made and signed by the candidate). Thus the Returning Officer shall 'invite nominations' and set down a date, time and place at which nomination papers shall be received. That nomination shall be made by separate nomination papers. It is not that a candidate 'files' his nomination papers and merely mentions the names of a proposer and seconder as a sham formality. It is not a painting to be looked at. It is of the essence of the process, the bedrock of the whole process. This then is the true place of the proposer and seconder in the scheme of the Rules, 2013. The nomination, thus, is made by the proposer of a candidate and it is only then that the nomination papers are received by the Returning Officer. Two inferences can be culled out at once: one, the proposer/ seconder have to be from same constituency and two, any defect in respect thereof is not a substantial error.

17. By rule 14, scrutiny of the nomination papers is to be conducted by the Returning Officer. The process of scrutiny may be participated by the candidates, the election agents, proposers and seconders or the persons who made objections to the nomination papers. By rule 3: Returning Officer has been empowered to reject a nomination papers if he

is satisfied that the grounds enumerated in the said sub-rule do not exist. Out of the four grounds on which the nomination papers may be rejected, three of the grounds relate to the proposers and seconders in different forms. The nomination papers may be rejected if the proposer or the seconder is not qualified to subscribe to the nomination papers; any provision of rule 12 or 13 has not been complied with; or the signatures or thumb impressions of the proposer or the seconder is not genuine. This has been brought forth in order to demonstrate the seriousness which the law attaches to the person of proposer and seconder and the meticulousness with which candidates have to be nominated for elections. This is not a mere technicality which can be remedied or removed as a defect. As brought forth above, it goes to the heart of the matter and relates to the nomination of a candidate for elections.

18. Further, upon closer reading of sub-rule 7, which has been invoked by the learned counsel for the petitioners, would show that as an illustration, the kind of errors that may be removed have been delineated in the said sub-rule. They have been mentioned as an error with regard to the name, serial

number in the Electoral Rolls or other particulars of the candidates or his proposer or seconder so as to bring that in conformity with the corresponding entries in the Electoral Rolls. Though the principle of *ejusdem generis* is not attracted strictly as in this case as the general words do not follow nomination of two or more things and thus it is difficult to show that they apply to the same general kind or class. However, the Latin phrase *noscitur a sociis* could be made use of in the interpretation of the said sub-rule. In *Reading Law: The Interpretation of Legal Texts* by Antonin Scalia and Bryan A. Garner, the phrase has been elaborated upon in the following manner:

“The Latin phrase noscitur a sociis means “it is known by its associates”—a classical version, applied to textual explanation, of the observed phenomenon that birds of a feather flock together. The associated-words canon could refer to the basic principle that words are given meaning by their context and some authorities use this canon at that broad level of generality. But we mean something more specific. When several nouns or verbs or adjectives or adverbs—any words—are associated in a context suggesting that the words have something in common, they should be assigned a permissible meaning that makes them similar. The canon especially holds that “words grouped in a list should be given related meanings.”

19. What is sought to be derived from the said phrase here is that the defect which the Returning Officer has been empowered to remedy has to conform to the defects which have been relied and referred to above in the same sub-rule. The power cannot be expanded to include the defect of the

nature which is the subject matter of this petition. For, this defect, in my opinion, constitutes a defect of a substantial nature. The defect is of the kind where the nomination of a candidate would be rendered defective and unworthy of consideration by the Returning Officer. Moreover, if the said defect was not of a substantial nature there was no point for the legislature to lay so much emphasis on the matter of proposer and seconder and would not have made it a ground for rejection of the nomination papers under rule 14(3) of the Rules, 2013. It will be tantamount to putting a premium on the misdeeds of the erring candidates. This will also involve a subjective assessment of the mental state of a candidate in order to gauge his true intent. Was the mistake made in good faith and clerical in nature or was it actuated by some mischievous design and a contraption? This subjective analysis cannot be left to the discretion of the Returning Officer.

20. There is yet another aspect of the issue. To allow the proposer and seconder to be substituted would mean a fresh nomination to be made. This would, in turn, mean an extension in the date of receiving of nomination papers and a change in the rest of the schedule too. Would this not impinge

upon the rights of other candidates? Can the election schedule be changed for facilitating one candidate, merely? Obviously this would be making a mockery of the entire electoral process and its solemn and serious nature. I cannot imagine that this can be countenanced to be done. I shall pause here to refer to some of the dictionary meanings of the term ‘substantial’. These are as follows:

“2. Cambridge Advanced Learner’s Dictionary – 4th Edition:

substantial / adjective (LARGE) B2
large in size, value, or importance:

relating to the main or most important things being considered: The committee were in substantial agreement (= agreed about most of the things discussed)

3. Merriam Webster’s Unabridged Dictionary:

*1 a : consisting of, relating to, sharing the nature of, or constituting substance : existing as or in substance : MATERIAL *substantial life* *the substantial realities* *most ponderous and substantial things—Shakespeare* b : not seeming or imaginary : not illusive : REAL, TRUE *the substantial world* *a mere dream neither substantial nor practical* c : being of moment : IMPORTANT, ESSENTIAL*

4. The Chambers Dictionary 12th Edition A to Z Chambers Harrap Publishers Ltd 2011 At Page 1552

Substantial: *of or having substance; being a substance; essential; actually existing; real; corporeal, material; solid; stable; solidly based; durable; enduring; firm, stout, strong;*

considerable in amount; bulky; well-to-do, wealthy, influential; of firm, solid or sound value.

21. The question which begs determination in the instant petition came up for determination before the Supreme Court of Pakistan in the context of the Representation of the People Act, 1976 (**Act, 1976**). The provisions of the Act, 1976 which are *in pari materia* with the provisions under consideration were dilated upon and a finding was rendered by the Supreme Court of Pakistan in the precedent reported as Rana Muhammad Tajammal Hussain v. Rana Shaukat Mahmood (**PLD 2007 Supreme Court 277**) (relied upon by Ch. Zulfiqar Ali, Advocate). For facility, the corresponding provisions, which came for consideration before the Supreme Court of Pakistan are reproduced as under:

“12. Nomination for election—[(1) Any elector of a constituency may propose or second the name of any duly qualified person to be a member for that constituency.]

[(2) Every nomination shall be made by a separate nomination paper in the prescribed form which shall be signed both by the proposer and the seconder and shall, on solemn affirmation made and signed by the candidate, accompany

a) a declaration that he has consented to the nomination and that he fulfils the qualifications specified in Article 62 and is not subject to any of the disqualifications specified in Article 63 or any other law for the time being in force for being elected as a member;

*(b) 8[****] Omitted.*

(c) a declaration that no loan for an amount of two million rupees or more, obtained from any bank, financial institution, cooperative society or corporate body in his own name or in the name of his spouse or any of his dependents, or any business concern mainly owned by him or the aforesaid, stands unpaid for more than one year from the due date, or has got such loan written off;

(d) a declaration that he, his spouse or any of his dependents or a business concern mainly owned by him or the aforesaid, is not in default in payment of government dues or utility charges, including telephone, electricity, gas and water charges of an amount in excess of ten thousand rupees, for over six months, at the time of filing of nomination papers;

(e) a statement specifying his educational qualifications, occupation, National Identity Card number and National Tax Number, if any, alongwith attested copies thereof; and

(f) a statement of his assets and liabilities and those of his spouse and dependents on the prescribed form as on the preceding thirtieth day of June;

14. Scrutiny.—(1) The candidates, their election agents, [the proposers and seconders and one other person authorized in this behalf by each candidate] may attend the scrutiny of nomination papers, and the Returning Officer shall give them reasonable opportunity for examining all nomination papers delivered to him under section 12:

[Provided that an elector who has filed an objection to the nomination of a candidate shall only attend the scrutiny of the nomination paper of that candidate.]

(2)...

(3) The Returning Officer may, either of his own motion or upon any objection, [either by an elector or] [by any person referred to in sub-section (1),] conduct such summary enquiry as he may think fit and may reject nomination paper if he is satisfied that—

(a) the candidate is not qualified to be elected as a member;

(b) the proposer or the seconder is not qualified to subscribe to the nomination paper;

(c) any provision of section 12 or section 13 has not been complied with [or submits any false or incorrect declaration or statement in any material particular];or

(d) the signature of the proposer or the seconder is not genuine;

Provided that:

(i) the rejection of a nomination paper shall not invalidate the nomination of a candidate by any other valid nomination paper;

[(1a) the Returning Officer may, for the purpose of scrutiny, require any agency or authority to produce any document or record;]

(ii) the Returning Officer shall not reject a nomination paper on the ground of any defect which is not of a substantial nature and may allow any such defect to be remedied forthwith, including an error in regard to the name, serial number in the electoral roll or other particulars of the candidate or his proposer or seconder so as to bring them in conformity with the corresponding entries in the electoral roll; and

(iii) the Returning Officer shall not enquire into the correctness or validity of any entry in the electoral roll.”

22. Before we proceed to reproduce the *ratio decidendi* of the cited case, a word regarding the true nature of statutes *in pari materia*. In Reading Law (cited above), the term has been elaborated upon as follows:

“Any word or phrase that comes before a court for interpretation is part of a whole statute, and its meaning is therefore affected by other provisions of the same statute. It is also, however, part of an entire corpus juris. So, if possible, it should no more be interpreted to clash with the rest of that corpus than it should be interpreted to clash with other provisions of the same law. Hence laws dealing with the same subject—being in pari materia,(translated as “in a like matter”)—should if possible be interpreted harmoniously. As James Kent explained in 1826: “Several acts in pari materia, and relating to the same subject, are to be taken together, and compared in the construction of them, because they are considered as having one object in view, and as acting upon one system.”

“Statutes,” Justice Frankfurter once wrote, “cannot be read intelligently if the eye is closed to considerations evidenced in affiliated statutes.” Part

of the statute's context is the corpus juris of which it forms a part, and this corpus can be dauntingly substantial. What is required, according to a British judge, is a "conspectus of the entire relevant body of the law for the same purpose." (page 252, 253)

23. In *Rana Muhammad Tajammal Hussain* case (supra) it was held by the Supreme Court of Pakistan as under:

*"...Learned counsel however, contended that the compliance of such provision of law i.e. section 12(1)(2) of the Act, 1976 is not mandatory but directory and due to its non-compliance the election of a candidate cannot be declared void and such defect can be cured by allowing substitution of qualified proposers and seconders in exercise of powers under section 14(3) proviso (ii) of the Act, 1976. In this behalf he has referred the judgment in the case of *Ishaq Dar v. The Election Tribunal Punjab* KLR 1998 Civil Cases 374 (Lahore).*

"...Moreover, in our considered opinion, with reference to a duty cast upon a qualified elector to propose or second a candidate to represent the members of the constituency in an elected house is mandatory and not directory."

9. It has been pointed out hereinabove that the object of section 12(1) of the Act, 1976 is that elector of the constituency may propose or second the name of any duly qualified person as a candidate for election as a member for the constituency, clearly spells out the intention of the legislature. Therefore, keeping in view that intention of the legislature the word 'may' used in section 12(1) has to be read as 'shall' and on having held that the word 'may' can be interchanged with the word 'shall' to enhance the intention of the legislature, the candidate is bound and under mandatory obligation to ensure filling of nomination papers from the constituency duly proposed and seconded by the electors therefrom. There is no cavil with the proposition that once it is found out that the provision of the law is mandatory by its implication, the same is bound to be strictly following as has been held in *Dalchand v. Municipal Corporation Bhopal* AIR 1983 SC 303.

10. Thus it is held that the plea of the learned counsel for appellant that permission be accorded to him to substitute the names of the proposer and seconder, at this stage, seems to be not acceptable. Therefore, opinion expressed in the case of *Ishaq Dar v. Election Tribunal* (KLR 1998 Civil Cases 373) is not approved for the reason maintained hereinabove because of the fact that this provision of law is

mandatory in its nature and would have substantial effect on the election for which a schedule is to be announced and any nomination paper found invalid cannot be allowed to be validated afterwards, even in exercise of powers either by the Returning Officer on the election Tribunal or for that matter High Court or this Court, in terms of section 14(1)(2) of the Act, 1976. A perusal of this provision also indicates that the powers of the Returning Officer have been controlled for not rejecting the nomination papers on any defect which is not of substantial nature, whereas defect in any submitted nomination papers, duly proposed and seconded by a candidate, is of a substantial nature and provisions of sections 12 and 14 of the Act, 1976 are mandatory in nature as held in Muhammad Abbas v. Returning Officer 1993 MLD 2509, Qaisir Iqbal v. Ch. Asad Raza 2002 YLR 2401, Asif Khan v. Returning Officer 2003 MLD 230 and Mudassar Qayyum Nahra v. Election Tribunal 2003 MLD 1089. Thus on having approved the principle discussed in these judgments, the earlier judgment in the case of Ishaq Dar (ibid) on the point is not approved. (page 281, 285, 286)”.

24. It is evident from a reading of the judgment reproduced above and cited by the learned counsel for the respondents that the said judgment encapsulates the controversy which has been raised in these petitions and conclusively determines the said controversy by holding that the provisions are mandatory in nature and the defect is of a substantial nature which could not be left to the discretion of the Returning Officer to remedy. It can be seen from a reproduction of the relevant provisions of the Act, 1976 that these are an exact reproduction of the provisions under consideration in the context of Rules, 2013 and the findings rendered by the Supreme Court of Pakistan are applicable on all fours in the case in hand as well. It can also be seen that the Supreme Court of Pakistan relied upon and

firmed the view taken in a number of cases which shows that this has been the consistent view of a superior court over a period of time. The basis of this judgment will find support from the dicta of the prior cases. These cases all relate to the Act, 1976 but the provisions of section 12(1), 13, 14(3)(b)(d) of proviso, fell for determination. These provisions, as explicated, are *in pari materia* to the provisions under consideration. In Mudassar Qaqqyum Nahra v. Election Tribunal, Punjab, Lahore (2003 MLD 1089), a full bench of this Court had this to hold:

“8. Section 12(1) of the Representation of the People Act, 1976, provides that any elector of a constituency may propose or second the name of any duly qualified person to be a member of that constituency. Similarly, para. 39 of the Manual Of Instructions for the Guidance of the Returning Officers, issued by the Election Commission of Pakistan provides that it is necessary that the person proposing or seconding the nomination of a duly qualified person to be a member from a constituency must belong to that constituency and should be registered as elector in the electoral roll of any one of the electoral areas comprised in the constituency. furthermore, law has taken into consideration the commission of such a mistake. Section 14(4) of the abovesaid Act provides that a person may be nominated in the same constituency by five nomination papers. Similarly, para. 40 of the abovesaid Manual of Instructions provides that a candidate may file five nomination papers from a constituency. section 14(3)(b) of the Representation of the People Act, 1976 provides that the Returning Officer may reject the nomination papers if he is satisfied that the proposer or the seconder is not qualified to subscribe to the nomination papers. Similarly, section 14(3)(c) provides for the rejection of the nomination papers, if any provision of section 12 or section 13 has not been complied with.

9. The above mentioned shows that a person not belonging to the concerned constituency cannot be a proposer or a seconder and the nomination papers of a candidate are liable to be rejected if the proposers or the seconder are not qualified to subscribe to the nomination papers. Second proviso to section 14(3)(d) of the Representation of the People Act, 1976, provides that the Returning Officer can allow the removal of only those defects which are not of substantial nature. The unqualified proposer or seconder leads to the rejection of nomination papers as provided in section 14(3)(b) and, therefore, such a defect cannot be held to be not of substantial nature because such a defect can be removed only by the substitution of a nomination paper and the law does not provide for the substitution of the proposers or the seconders and the safety valve has been provided to the candidates by permitting them by filing up to five nomination papers...”

In Hafiz Muhammad Abbas v. Returning Officer and 16 others (1993 MLD 2509), once again a full bench observed as under:

“The argument that the provisions of Representation of People Act, 1976 are not mandatory but of directory nature have to be seen and interpreted in the light of the facts of each case. In the case in hand a clear provision of Representation of People Act, 1976 has been violated, in that the seconder with whose signatures the nomination papers were filed was found to be not belonging to the constituency for which the candidate had filed nomination papers. Such a violation could not have been left unnoticed nor could the same be remedied.”

Lastly, in Asif Khan v. Returning Officer (2003 MLD 230), a Division bench of this Court concluded that:

“The constituency stands defined in section 2 of the Act and admittedly the proposer did not belong to the constituency from which the appellant wanted to contest section 14(3)(c) of the afore-referred Act mandates that the Returning Officer may of his own motion or

upon the objection raised by any person, reject the Nomination Papers inter alia on the ground:

“Any provision of section 12 or section 13 has not been complied with (or submits any false or incorrect declaration or statement in any material particular);”

4. *Admittedly, the proposer is not enrolled in PP-34 in which the appellant had filed his Nomination Papers. The expression “may” appearing in section 14(3)(c) of the Act is mandatory otherwise it would frustrate the very purpose of section 12 and other related sections. In the afore-referred circumstances, we do not find any illegality in the impugned order to warrant interference. This appeal having no merits is dismissed in limine.”*

25. The cluster of precedents are all unanimous in concluding the mandatory nature of the provisions, the defect being substantial and thus not covered by the remedial provision of rule 14(7) of the Rules, 2013.

26. Before I part with this judgment, a word regarding the distinction to be drawn in cases where the defect is flagged at the time of scrutiny of nomination papers and the cases where it becomes known to the candidate before the date of the receipt of nomination papers has come to pass. In the former cases, as held in the preceding paragraphs, the Returning Officer cannot proceed to remedy the defect in the purported exercise of powers under rule 14(7) of the Rules, 2013. However, in the latter case, the candidate may choose to remedy the defect

by filing fresh nomination papers by any mode provided by law. This will not entail the exercise of discretion by the Returning Officer and thus the provisions of rule 14(7) are not engaged.

27. For the reasons adumbrated, these petitions are without merit and are **dismissed**. However, the petitions W.P No.29344 of 2015, W.P 29345 of 2015, W.P No.29346 of 2015, W.P No.29347 of 2015, W.P No.29348 of 2015, W.P No.29393 of 2015 and W.P No.29343 of 2015 are accepted as these challenge the orders of the Appellate Authorities permitting the substitution of the proposers and seconders in contravention of the mandate of law.

(SHAHID KARIM)
JUDGE

Announced in open Court on 08.10.2015

JUDGE

Approved for reporting.

JUDGE

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Rafiqat Ali

(Annexure ‘A’)

Sr. No.	W.P. Nos.	Title
1.	29214 of 2015	Ghulam Ali Vs. A.D.J, etc
2.	29389 of 2015	Mushtaq Ahmad Vs. Election Tribunal, etc
3.	29388 of 2015	Rafaqat Ali Vs. Regional Election Commissioner, etc
4.	29374 of 2015	Mushtaq Ahmad Vs. Returning Officer, etc
5.	29010 of 2015	Liaqat Ali Vs. Chief Election Commission, etc
6.	29008 of 2015	Usman Ghani Vs. Chief Election Commission etc
7.	29093 of 2015	Sardar Mahmood Ali Vs. Chief Election Commission, etc
8.	28971 of 2015	Faqir Hussain vs. Chief Election Commissioner etc
9.	28970 of 2015	Muhammad Usman Vs. Chief Election Commissioner, etc
10.	28972 of 2015	Muhammad Adnan Vs. Chief Election Commissioner, etc
11.	28973 of 2015	Rana Muhammad Saeed Vs. Chief Election Commissioner, etc
12.	29033 of 2015	Imran Ali Vs. District Returning Officer
13.	28694 of 2015	Muhammad Ilyas vs. Election Tribunal, etc
14.	29185 of 2015	Muhammad Idrees vs. Election Tribunal, etc.
15.	29095 of 2015	Muhammad Aslam vs. Election Commission, etc
16.	28890 of 2015	Naseem Abbas vs. Election Tribunal, etc
17.	28921 of 2015	Muhammad Saeed etc Vs. Appellate Authority etc
18.	29031 of 2015	Muhammad Younas vs. District Returning Officer,
19.	29177 of 2015	Javed Iqbal vs. A.S.J, etc
20.	29127 of 2015	Safdar Ali vs. Returning Officer, etc
21.	28857 of 2015	Javid Iqbal Khan vs. A.D.J, etc
22.	28968 of 2015	M.Afsar Awan vs. Chief Election Commissioner, etc
23.	29209 of 2015	Shamshad Akhtar vs. Chief Election Commissioner, etc
24.	29125 of 2015	Ghulam Mustafa Vs. A.S.J, etc
25.	29123 of 2015	Naeem Razzaq vs. A.S.J, etc
26.	29086 of 2015	Shaukat Imran vs. Returning Officer, etc
27.	29077 of 2015	Muhammad Sohail vs. Chief Election Commissioner etc
28.	28894 of 2015	Muhammad Altaf Hussain vs. Returning Officer, etc
29.	28912 of 2015	Maqsood Ahmad vs. Chief Election commission etc
30.	29176 of 2015	Muhammad Jamil Vs. A.S.J, etc
31.	29188 of 2015	Muhammad Abbas Vs. Appellate Tribunal Election Commission etc.
32.	29297 of 2015	Muhammad Abid Iqbal vs. District Election Commissioner, etc
33.	29296 of 2015	Khalid Bashir vs. District Election Commissioner, etc
34.	29132 of 2015	M. Munir Ahmad Tanvir vs. Asif Saeed etc
35.	29258 of 2015	Muhammad Latif vs. Election Authority, etc

36.	29257 of 2015	Jamil Hussain vs. Election Authority, etc
37.	29045 of 2015	Muhammad Ali vs. District Election Commissioner, etc
38.	29076 of 2015	Ejaz Ahmad vs. Chief Election Commissioner etc
39.	29338 of 2015	Khushi Muhammad vs. Returning Officer etc
40.	29337 of 2015	Muhammad Latif Vs. Returning Officer, etc
41.	29336 of 2015	Zia Ullah Vs. Local Government, etc
42.	29322 of 2015	Mohsin Ali Vs. Chief Election Commission etc
43.	29323 of 2015	Ghulam Nabi vs. Chief Election Commission etc
44.	29200 of 2015	Sohail Abid vs. Appellate Election Tribunal etc
45.	29318 of 2015	Muhammad Afzal vs. Chief Election Commission etc
46.	29317 of 2015	Mubashar Hussain Vs. District Returning Officer, etc
47.	29312 of 2015	Muhammad Akhtar Ali vs. District Returning Officer, etc
48.	29305 of 2015	Khurram Shahzad vs. District Returning Officer, etc
49.	29283 of 2015	Sabir Hussain Vs. Returning Officer, etc
50.	29279 of 2015	Malik Haider Ali Vs. Returning Officer, etc
51.	29278 of 2015	Shahid Javeed vs. District Returning Officer, etc
52.	29261 of 2015	Sajjad Ali vs. Election Authority, etc
53.	29620 of 2015	Ansar Ali vs. Returning Officer, etc
54.	29623 of 2015	Muhammad Zahid vs. Election Commission Punjab etc
55.	29502 of 2015	Mehboob Alam vs. A.S.J, etc
56.	29444 of 2015	Imran Ali Malik vs. Learned Election Appellate Authority, etc
57.	29457 of 2015	Muhammad Hanif vs. Election Commissioner etc
58.	29426 of 2015	Muhammad Javaid Khan vs. Returning Officer, etc
59.	29479 of 2015	Saeed Ahmad vs. Returning Officer, etc
60.	28249 of 2015	Ghulam Rasool vs. Chief Election Commissioner, etc
61.	28794 of 2015	Muhammad Awais Ahmad Khan vs. Ijaz Hassan Awan etc
62.	29798 of 2015	Muhammad Musthaq vs. District Returning Officer, etc
63.	29793 of 2015	Muhammad Shafi vs. Additional Sessions Judge, etc
64.	29760 of 2015	Muhammad Arshad Adeel vs. Chief Election Commissioner, etc
65.	29752 of 2015	Muhammad Arshad vs. Returning Officer etc
66.	29747 of 2015	Saif Ali vs. Returning Officer, etc
67.	29729 of 2015	Raja Muhammad Riaz vs. Chief Election Commissioner, etc
68.	29681 of 2015	Shahamand vs. Returning Officer, etc
69.	28928 of 2015	Muhammad Iqbal vs. Chief Election Commissioner, etc
70.	30035 of 2015	Muhammad Akram vs. Returning Officer, etc
71.	29977 of 2015	Abdul Rashid vs. the Learned A.D.J, etc
72.	29955 of 2015	Irshad Ali vs. Appellate Authority, etc
73.	29907 of 2015	Noor-ul-Amin vs. Returning Officer, etc

74.	29988 of 2015	Muhammad Zohaib Butt vs. Election Commissioner Punjab.
75.	29343 of 2015	Mahmood Ahmad Vs. Election Tribunal, etc
76.	29344 of 2015	Muhammad Mohsin Vs. Election Tribunal, etc
77.	29345 of 2015	Safdar Ali Vs. Election Tribunal etc
78.	29346 of 2015	Safdar Ali vs. Election Tribunal, etc
79.	29347 of 2015	Mahmood Ahmad vs. Election Tribunal, etc
80.	29348 of 2015	Muhammad Mansha vs. Election Tribunal, etc
81.	29393 of 2015	Muhammad Aslam Vs. Election Tribunal,etc

(SHAHID KARIM)
JUDGE